2. Disseminating or causing to be disseminated any advertisement by means of the United States mails, or by any means in commerce, as "commerce" is defined in the Federal Trade Commission Act, which fails to reveal that the use of said preparation on open sores or wounds may result in lead poisoning: *Provided, however,* That such advertisement need contain only the statement, "Caution: Use only as directed," if and when the directions for use, wherever they appear on the label, in the labeling, or both on the label and in the labeling, contain a warning to the above effect.

3. Disseminating or causing to be disseminated any advertisement by any means for the purpose of inducing, or which is likely to induce, directly or indirectly, the purchase of said preparation in commerce, as "commerce" is defined in the Federal Trade Commission Act, which advertisement contains any representation prohibited in paragraph 1 hereof, or which fails to comply with the affirmative requirements set forth in paragraph 2 hereof.

It is further ordered, That the respondent shall, within sixty (60) days after service upon her of this order, file with the Commission a report in writing setting forth in detail the manner and form in which she has complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 46-550; Filed, Jan. 10, 1946; 11:25 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Reg. S-14]

PART 105—ACCOUNTS

MISCELLANEOUS AMENDMENTS

Pursuant to the authority vested in me by R. S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (3 CFR, 1944 Supp., 66), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), §§ 105.27, 105.29, 105.31, 105.32, 105.33, 105.35, 105.36, 105.39, 105.40, 105.42, 105.44, 105.45, 105.53, 105.54, 105.56, and 105.57 are amended, § 105.48 is revoked, and §§ 105.58 and 105.59 are added, as follows:

§ 105.27 *Telegraph and telephone service.* (a) Discretion should be exercised in the use of telegraph or cable service or the telephone at Government expense, and ordinarily such use should be restricted to cases of urgency where delay would result in injury or be prejudicial to the public or legitimate private interests, or where the purpose cannot be accomplished by the use of ordinary or air mail services. (See § 106.2 of this chapter.)

(b) When an application for leave of absence is made by a diplomatic or consular officer or any employee by telegraph or telephone, the cost thereof shall be borne by him personally, and if a reply to such an application is forwarded by telegraph or telephone the cost thereof shall also be charged to him: *Provided, however,* That the Secretary of State may in either case determine that the messages relate to official business.

(c) Canceled.

(d) Whenever the Secretary of State, in his discretion, procures information on behalf of corporations, firms, and individuals, the expense of cablegrams and telephone service involved may be charged against the respective appropriations for the service utilized, and reimbursement therefor shall be required from those for whom the information was procured, and, when made, be credited to the appropriation under which the expenditure was charged. (5 U.S.C. 169.) Such expenses should be incurred only upon prepayment by the interested party of all charges or satisfactory assurance of payment. (See § 106.2 of this chapter.)

(e) *Contracts for telephone service required.* Officers in charge must forward to the Department in accordance with § 105.26, original contracts or agreements for telephone service at their offices, if such contracts have been made or are obtainable. If it is not possible to obtain a written contract or agreement, the facts should be fully explained. A list of toll rates should be forwarded with the contract and a revised list should be forwarded for filing with that contract whenever changes in rates are made.

§ 105.29 *Ambassadors, ministers, ministers resident, commissioners and chargés d'affaires*—(a) *Ambassadors and ministers.* Ambassadors and ministers are entitled to compensation at the rate prescribed according to law. (See § 101.6 of this chapter.)

(b) *Ministers resident, commissioners and chargés d'affaires.* Unless otherwise provided by law, ministers resident and commissioners shall be entitled to compensation at the rate of 75 per centum, and chargés d'affaires ad interim at the rate of 50 per centum, of the amounts allowed to ambassadors extraordinary and plenipotentiary and envoys extraordinary and ministers plenipotentiary to the respective countries. (See § 101.6 of this chapter.) (22 U.S.C. 19, 20, 32)

§ 105.31 *Vice consuls commissioned by the Secretary of State and officers of the Foreign Service assigned for special duty.* (a) Vice consuls commissioned by the Secretary of State, other than those mentioned in § 105.35 shall receive compensation at the rates authorized by the Department of State, including salaries while under instruction in the United States and during transit to and from homes in the United States upon the beginning and after termination of their services, as provided by the applicable appropriation or other act. (See § 105.42.)

(b) Persons assigned for special duty as officers of the Foreign Service in accordance with section 10 (c) of the act of February 23, 1931, as amended, shall be paid their authorized salaries throughout the periods of such assignment from the appropriations provided for the Department of State.

§ 105.32 *Administrative, fiscal and clerical personnel and Foreign Service Auxiliary personnel.* (a) Administrative, fiscal and clerical personnel of the Foreign Service who are not paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation at the rates prescribed by section 1 of the act of February 23, 1931, as amended, or as fixed by the Department of State in accordance with the provisions § 101.6 of this chapter, including salaries while under instruction in the United States and during transit to and from homes in the United States upon the beginning and after termination of their services, as provided by the applicable appropriation or other act. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis of the individual personnel actions at the rates fixed by the Secretary of State in accordance with law.

(b) Foreign Service Auxiliary (noncareer) officers and employees who are not paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation at the rates authorized by the Department of State, including salaries while under instruction in the United States and during transit to and from their homes in the United States upon the beginning and after termination of their services in the same manner and under the same conditions as other officers and employees of the Foreign Service of like rank and position, in accordance with the provisions of the applicable authority for the Foreign Service Auxiliary. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis and at the rates fixed in accordance with law.

§ 105.33 *Miscellaneous employees.* Miscellaneous employees of the Foreign Service shall receive compensation at the rates authorized by the Department of State in accordance with the provision of § 101.6 of this chapter, including salaries while under instruction in the United States and during transit to and from their homes in the United States upon the beginning and after termination of their services in foreign countries, or as provided by the current appropriation act or other law. Such personnel who are paid in accordance with local prevailing wage rates for the area in which employed shall receive compensation on the basis and at the rates fixed in accordance with law.

§ 105.35 *Vice consuls who receive compensation while in charge only.* Vice consuls commissioned by the Secretary of State who receive compensation while in charge only shall receive compensation for such periods in the amount of one-half of the aggregate compensation of the last principal officer of the post. (See § 105.37.) (22 U.S.C. 20; 43 Stat. 1016; Dec. Comp. Gen. May 20, 1943, B-8442)